



United States
Attorney's Office
Western District of Washington



Brothers from India sentenced to prison for smuggling fake or contaminated drugs into the U.S.

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For Immediate Release

U.S. Attorney's Office, Western District of Washington

Pair arrested in Singapore following FDA and HSI undercover investigation

Seattle – Two brothers from India were each sentenced today in U.S. District Court in Seattle to 30 months in prison for their scheme to sell counterfeit and adulterated drugs in the United States, announced Acting U.S. Attorney Teal Luthy Miller. Avanish Kumar Jha, 39, and Rajnish Kumar Jha, 36, were arrested in Singapore on April 20, 2023, based on the 2022 indictment. The men were extradited to the U.S. in February 2025. At the sentencing hearing U.S. District Judge Ricardo S. Martinez said, "The issue here is the introduction of adulterated drugs to people who think they are getting lifesaving drugs... This activity has so much risk to cause harm."

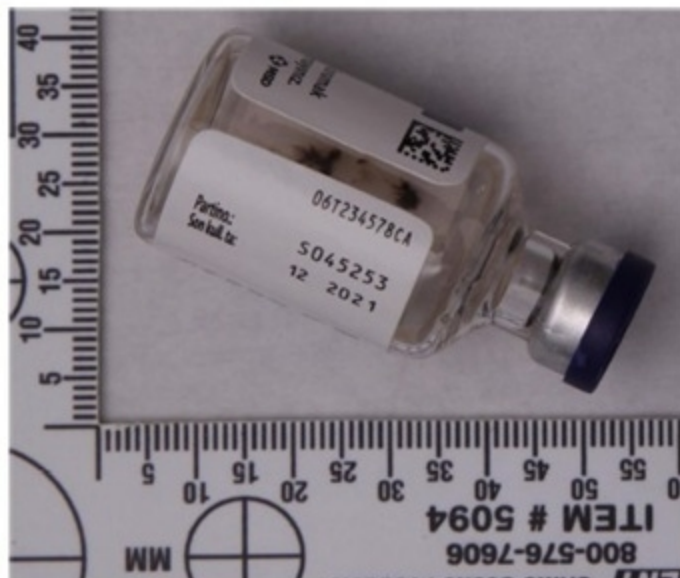
"When this investigation began, the first vial of medicine shipped to the undercover agent was not the cancer-fighting drug Keytruda at all but rather over-the-counter heartburn medicine in a bottle labeled as Keytruda. Keytruda's active ingredient—the substance that could add months or even years to the lives of terminal cancer patients—was totally absent," said Acting U.S. Attorney Miller. "The defendants made hundreds of thousands of dollars while defrauding people who were clinging to hope that a late-stage cancer medication could extend their life."

The investigation of the Jha brothers began in 2019, when investigators reviewed internet postings and other evidence indicating that the Jha brothers and their company, Dhristi Pharma International, were offering to sell prescription drugs to buyers in the United States and elsewhere. Undercover agents with the Office of Criminal Investigations (OCI) of the Food and Drug Administration (FDA) and U.S. Immigration and Customs Enforcement (ICE) Homeland Security Investigations (HSI) began communicating with the Jha brothers and ordered some of their products. Of particular concern was a "medication" labeled as "Keytruda," a Merck drug for late-stage cancer. An analysis revealed that the

Jha brothers were selling counterfeit Keytruda that contained none of active ingredient that made the authentic product effective. Other products contained contaminants.

The brothers shipped the counterfeit and adulterated drugs from India. They accepted various means of payment including wire transfers and direct money exchanges. In some cases, they used intermediaries in the United States to pick up cash payments. The drugs were packaged in such a way to avoid detection by international customs or other regulators.

In January 2025, a judge in Singapore ruled the men could be extradited to the U.S. In early June 2025, both defendants entered pleas of guilty to one count of smuggling.



In asking for the 30-month sentence, Assistant United States Attorney Philip Kopczynski wrote to the court, "Exporting counterfeit medicines is a cruel business that robs ill people of any hope for relief. Cancer patients unknowingly using fake Keytruda would have no chance of improvement with their terminal disease. The defendants profited by peddling counterfeit Keytruda and many other drugs, all in contravention of numerous U.S. laws and regulations that are meant to keep people safe.... Regrettably, schemes like this one are not unique. Many people line their pockets by flouting the Food, Drug, and Cosmetic Act and other important U.S. laws."

"Americans expect and deserve drugs that are safe, effective, and that meet appropriate standards for quality, yet these individuals distributed counterfeit prescription drugs to vulnerable cancer patients," said Special Agent in Charge Robert Iwanicki, FDA Office of Criminal Investigations Los Angeles Field Office. "Such conduct cannot be tolerated, and the FDA will continue to work with the Department of Justice to bring to justice those who place American patients at risk."

"This investigation is a prime example of collaboration between law enforcement agencies to leverage their unique authorities to target international criminal organizations," said ICE Homeland Security Investigations Seattle Acting Special Agent in Charge Colin Jackson. "The Jha brothers, driven by greed, attempted to exploit vulnerable Americans battling serious illnesses by selling counterfeit cancer medications. HSI remains dedicated to pursuing and bringing to justice those who seek to victimize people with serious illnesses through these types of fraudulent schemes."

Judge Martinez imposed a \$50,000 fine on each defendant and in August will consider whether to impose \$81,596 in restitution to Merck for the expenses incurred by testing the fraudulent and adulterated drugs for law enforcement. The judge noted that the entire thrust of the crime was to make money. "It is important to send a deterrence message to anyone who might send adulterated drugs into any country," Judge Martinez said.

The case was investigated by the Food and Drug Administration’s Office of Criminal Investigations and ICE HSI.

The case is being prosecuted by Assistant United States Attorney Philip Kopczynski. The U.S. Department of Justice’s Office of International Affairs provided valuable assistance with securing the extradition. Significant assistance was provided by law enforcement partners at the U.S. Embassy in Singapore, including the ICE HSI Attaché and the U.S. Department of State’s Diplomatic Security Service Office of Overseas Criminal Investigations, and Singaporean authorities, particularly the Singapore Police Force and Attorney-General’s Chambers.

Contact

Press contact for the U.S. Attorney’s Office is Communications Director Emily Langlie at (206) 553-4110 or Emily.Langlie@usdoj.gov.

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